

Track 1 — Chapter Build Pass

MPEP §§2160s · Written Description, Enablement & Definiteness (35 U.S.C. §112)

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Three Requirements Often Confused With Each Other

§112 issues are some of the most conceptually confused on the exam because written description, enablement, and definiteness sound similar but ask genuinely different questions. Nailing down which question a fact pattern is actually asking is most of the battle.

Rule 1: Three Separate §112(a) Requirements (§2161)

PLAIN ENGLISH

§112(a) actually contains **three distinct requirements**, often confused: (1) **written description** — the specification must show the inventor possessed the full claimed invention as of filing; (2) **enablement** — the specification must teach a skilled artisan how to make and use the full scope of the claim without undue experimentation; (3) **best mode** — the inventor must disclose the best mode known to them at filing (though failure to disclose best mode can no longer be raised as an invalidity/unpatentability basis in litigation post-AIA, it remains technically a requirement during examination). These are analyzed separately — satisfying one doesn't satisfy the others.

EXAMPLE

A specification might fully enable making and using a chemical compound (enablement satisfied) while never actually describing that specific compound as something the inventor possessed, if the claim was added later covering something broader than what was originally described (written description failure) — showing how the two requirements can diverge.

QUIZ

An applicant argues their §112(a) rejection should be withdrawn because the specification clearly enables a skilled artisan to make and use the claimed invention. Does this alone overcome a written description rejection?

- (A) Yes, enablement subsumes written description
- (B) No — written description and enablement are separate requirements; satisfying one doesn't satisfy the other
- (C) Yes, if the invention is simple
- (D) No, because enablement is not part of §112(a)

Rule 2: The Wands Factors for Enablement (§2164.01(a))

PLAIN ENGLISH

Whether "undue experimentation" would be required is evaluated using the non-exhaustive **In re Wands** factors: breadth of the claims, nature of the invention, state of the prior art, level of skill in the art, predictability of the art, amount of direction/guidance in the specification, presence of working examples, and quantity of experimentation needed. No single factor is dispositive — it's a holistic assessment.

EXAMPLE

A claim broadly covering "all antibodies that bind to protein X" in an unpredictable art (biotech), with only one narrow working example and little guidance on making variants, would likely require undue experimentation to enable the claim's full breadth — an enablement problem, even though the one example itself is fully enabled.

QUIZ

Which of the following is one of the Wands factors for evaluating undue experimentation?

- (A) The commercial success of the invention
- (B) The predictability of the art
- (C) Whether the invention is patent eligible
- (D) The number of inventors listed

Rule 3: Written Description — Possession as of the Filing Date (§2163)

PLAIN ENGLISH

The written description requirement is satisfied when the specification, as originally filed, would reasonably convey to a skilled artisan that the inventor had possession of the claimed invention **as of the filing date** — even implicit or inherent disclosure counts, but new matter added later cannot cure an original written description defect. This especially matters when claims are amended or added after filing to broaden or shift their scope.

EXAMPLE

An original specification describes only a chemical genus by a general formula, without disclosing any specific species. A later-added claim to one specific, previously undisclosed species may fail written description, because the original filing didn't show possession of that particular species — even if the genus formula would have enabled a skilled artisan to make it.

QUIZ

An applicant amends a claim after filing to newly recite a specific numeric range not found anywhere in the original specification. This most directly raises which issue?

- (A) An enablement problem only
- (B) A written description problem — no possession shown as of the filing date
- (C) A double patenting problem
- (D) An obviousness problem

Rule 4: Definiteness Under §112(b) (§2173)

PLAIN ENGLISH

§112(b) requires claims to **particularly point out and distinctly claim** the invention. The modern standard (*Nautilus v. Biosig*) is whether the claim, read in light of the specification and prosecution history, fails to inform a skilled artisan with **reasonable certainty** about the scope of the invention. Purely subjective claim terms (e.g., "aesthetically pleasing") without an objective standard in the specification are a common definiteness problem.

EXAMPLE

A claim reciting a component sized to be "substantially close" to another component, with no guidance in the specification about what "substantially close" means or how close is close enough, fails to inform a skilled artisan with reasonable certainty of the claim scope — a §112(b) indefiniteness problem.

QUIZ

Under the Nautilus standard, a claim is indefinite when:

- (A) It fails to be enabled
- (B) It fails, when read with the specification and prosecution history, to inform a skilled artisan with reasonable certainty of its scope
- (C) It is broader than the specification's examples
- (D) It uses means-plus-function language

Rule 5: Means-Plus-Function Claims Under §112(f) (§2181)

PLAIN ENGLISH

A claim limitation using "means for" (or similar functional language, without reciting sufficient structure) is interpreted under §112(f) as covering the corresponding structure disclosed in the specification **and its equivalents** — not literally any means of performing the function. If the specification discloses NO corresponding structure for a means-plus-function limitation, the claim is indefinite under §112(b) for failing to disclose adequate structure.

EXAMPLE

A claim recites "means for fastening the two panels together." If the specification only describes a specific type of adhesive as the fastening structure, the claim (under §112(f)) is interpreted as covering that adhesive and its structural equivalents — not screws, welds, or any other fastening method never disclosed or structurally equivalent to what was disclosed.

QUIZ

A means-plus-function claim limitation is used, but the specification discloses no corresponding structure for performing the function. What is the result?

- (A) The claim covers any means of performing the function
 - (B) The claim is indefinite under §112(b)
 - (C) The claim is automatically anticipated
 - (D) §112(f) does not apply in this situation
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A specification enables a skilled artisan to make and use a claimed device with no undue experimentation, but a claim was added post-filing reciting a specific dimension never mentioned anywhere in the original disclosure. What is the most likely §112 issue?

- (A) Enablement
- (B) Written description
- (C) Definiteness
- (D) Best mode

2. Which Wands factor would weigh MOST heavily toward finding undue experimentation for a broad genus claim in an unpredictable chemical art with only one working example?

- (A) Level of skill in the art being very high
- (B) Predictability of the art being low, combined with a single narrow example
- (C) The claim being narrow
- (D) The specification containing extensive working examples

3. A claim uses the term "a strong material" with no definition or objective standard anywhere in the specification. Under Nautilus, this claim is likely:

- (A) Definite, because "strong" is commonly understood
- (B) Indefinite — a purely subjective term without an objective standard fails the reasonable-certainty test
- (C) Definite, if the prior art uses similar language
- (D) Irrelevant to §112(b), which only concerns claim length

4. A means-plus-function claim's specification discloses a specific gear mechanism as the structure performing the recited function. Under §112(f), the claim covers:

- (A) Any structure that performs the function, however different
- (B) The disclosed gear mechanism and its structural equivalents
- (C) Only the exact gear mechanism, with no equivalents
- (D) Nothing, because means-plus-function claims are always indefinite

5. True or False: Satisfying enablement automatically satisfies written description, since both come from §112(a).

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- §112(a) = **three separate requirements**: written description, enablement, best mode.
- Written description = possession **as of filing date**; enablement = skilled artisan can make/use **without undue experimentation**. Different questions.
- **Wands factors** (non-exhaustive, holistic): breadth, nature of invention, prior art state, skill level, predictability, guidance given, working examples, experimentation quantity.
- **Nautilus** standard for definiteness: fails if the claim doesn't inform a skilled artisan with **reasonable certainty** of its scope.
- §112(f) means-plus-function claims cover disclosed structure **and equivalents** — not any means, and not a rigid literal reading.
- No disclosed structure for a means-plus-function limitation → claim is **indefinite** under §112(b).

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Three Separate §112(a) Requirements (§2161)

An applicant argues their §112(a) rejection should be withdrawn because the specification clearly enables a skilled artisan to make and use the claimed invention. Does this alone overcome a written description rejection?

Answer: B

This exact confusion is heavily tested. Enablement asks if a skilled artisan **COULD** make/use the invention; written description asks if the specification shows the inventor actually **POSSESSED** it — distinct questions that require separate analysis.

Rule 2: The Wands Factors for Enablement (§2164.01(a))

Which of the following is one of the Wands factors for evaluating undue experimentation?

Answer: B

Predictability of the art is a core Wands factor — unpredictable arts (biotech, chemistry) generally require more disclosure to enable a given claim breadth than predictable ones (mechanical devices).

Rule 3: Written Description — Possession as of the Filing Date (§2163)

An applicant amends a claim after filing to newly recite a specific numeric range not found anywhere in the original specification. This most directly raises which issue?

Answer: B

A newly claimed range not supported by the original disclosure is the classic written-description trap — even a fully enabled invention can lack written-description support for an added, unsupported claim limitation.

Rule 4: Definiteness Under §112(b) (§2173)

Under the Nautilus standard, a claim is indefinite when:

Answer: B

Nautilus set the modern "reasonable certainty" standard — replacing the older, more permissive "insolubly ambiguous" test. This is a frequently updated/tested standard, worth memorizing precisely.

Rule 5: Means-Plus-Function Claims Under §112(f) (§2181)

A means-plus-function claim limitation is used, but the specification discloses no corresponding structure for performing the function. What is the result?

Answer: B

Without disclosed corresponding structure, there's nothing to define the claim's scope under §112(f) — the claim is indefinite, a frequently tested consequence of using functional claim language without adequate structural support.

Chapter Close-Out Quiz

1. (B)

A claim limitation with no support anywhere in the original disclosure is a written description problem — possession as of the filing date wasn't shown, even if the device generally is enabled.

2. (B)

Low predictability plus minimal working examples is the classic combination that drives up the burden of experimentation across a broad genus — directly implicating multiple Wands factors at once.

3. (B)

A subjective term without any objective anchor in the specification is a textbook post-Nautilus indefiniteness problem.

4. (B)

§112(f) claims cover the corresponding disclosed structure and its equivalents — not a boundless functional scope, and not a rigid, equivalents-free literal reading either.

5. (B) False

They're independent §112(a) requirements. A claim can be enabled without being supported by an adequate written description, and vice versa — a frequently tested distinction.

End of MPEP §§2160s (§112). This completes the multi-file Chapter 2100 series (Eligibility, Utility, Novelty, Obviousness, §112).